

to depend upon the choice of words used in the pleadings. The necessary prerequisite to the right to maintain a suit for an equitable accounting, like all other equitable remedies, is, as we pointed out in *Beacon Theatres*, the absence of an adequate remedy at law.<sup>16</sup> Consequently, in order to maintain such a suit on a cause of action cognizable at law, as this one is, the plaintiff must be able to show that the "accounts between the parties" are of such a "complicated nature" that only a court of equity can satisfactorily unravel them.<sup>17</sup> In view of the powers given to District Courts by Federal Rule of Civil Procedure 53 (b) to appoint masters to assist the jury in those exceptional cases where the legal issues are too complicated for the jury adequately to handle alone,<sup>18</sup> the burden of such a showing is considerably increased and it will indeed be a rare case in which it can be met.<sup>19</sup> But be that as it may, this is certainly

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<sup>16</sup> 359 U. S., at 506-510. See also *Thompson v. Railroad Companies*, 6 Wall. 134, 137; *Scott v. Neely*, 140 U. S. 106, 110.

<sup>17</sup> *Kirby v. Lake Shore & Michigan Southern R. Co.*, 120 U. S. 130, 134.

<sup>18</sup> Even this limited inroad upon the right to trial by jury "should seldom be made, and if at all only when unusual circumstances exist." *La Buy v. Howes Leather Co.*, 352 U. S. 249, 258. See also *In re Watkins*, 271 F. 2d 771.

<sup>19</sup> It was settled in *Beacon Theatres* that procedural changes which remove the inadequacy of a remedy at law may sharply diminish the scope of traditional equitable remedies by making them unnecessary in many cases. "Thus, the justification for equity's deciding legal issues once it obtains jurisdiction, and refusing to dismiss a case, merely because subsequently a legal remedy becomes available, must be re-evaluated in the light of the liberal joinder provisions of the Federal Rules which allow legal and equitable causes to be brought and resolved in one civil action. Similarly the need for, and therefore, the availability of such equitable remedies as Bills of Peace, *Quia Timet* and Injunction must be reconsidered in view of the existence of the Declaratory Judgment Act as well as the liberal joinder provision of the Rules." 359 U. S., at 509.